

more than Ms. Walden and **overruled** as to the rest of the paragraph.

Objection No. 3: **Overruled**.

Objection No. 4: **Overruled**.

Objection No. 5: **Overruled**.

Objection No. 6: **Overruled**.

Objection No. 7: **Overruled**.

Objection No. 8: **Overruled**.

Objection No. 9: **Overruled**.

Objection No. 10: **Overruled**.

Objection No. 11: **Sustained**.

4. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
***HEARING ON MOTION IN RE: TO TRANSFER AND CONSOLIDATE CASES**
FILED BY: SCHAKANOVICH, ALDVIN
TENTATIVE RULING:

The unopposed motion to transfer and consolidate cases is granted.
The Court will sign the Proposed Order and email to Plaintiff for service on all parties.

5. 9:00 AM CASE NUMBER: C23-03306
CASE NAME: GLADYS QUINTANILLA VS. VIRGINIA GRUVER
***HEARING ON MOTION IN RE: ORDER IMPOSING TERMINATING SANCTIONS**
FILED BY: QUINTANILLA, GLADYS ELIZABETH
TENTATIVE RULING:

Plaintiffs bring the instant motion for terminating sanctions, or in the alternative, an order imposing issue and / or evidentiary sanctions.

On July 11, 2025, this Court ordered Defendant VIRGINIA GRUVER to serve verified discovery responses, without objection, to Plaintiff's Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for Production of Documents, Set One within 60 days (i.e. September 9, 2025)

The court also granted Plaintiffs' request for sanctions in the amount of \$4,440 imposed on Defendant and her Counsel to be paid within 20 days (i.e. July 31, 2025).

Plaintiffs assert that Defendant has failed to comply with the Court's July 11, 2025 order, and seek an

order for terminating sanctions, or in the alternative, an order imposing issue and / or evidentiary sanctions.

Counsel for Defendant admits that he had been unable to contact his client “since the beginning of the case” and had informed Plaintiff’s counsel that he was at the point where he needed to retain a private investigator to find his client. Declaration of James M. Treppa, (Treppa Dec.) ¶ 8. Defendant represents or around December 3, 2025, Defense counsel’s firm “successfully tracked down Defendant.” Since then, Defense counsel has worked to get responses from Defendant, and on January 28, 2026—almost five months after the court’s September 9, 2025 deadline for compliance-- Defendant served verified responses to Plaintiffs. (Treppa Dec., ¶¶ 10, 11.)

Defense counsel submitted a copy of the discovery responses served on Plaintiffs. (Treppa Dec. ¶ 11, Exs. A-C.)

The court notes that the Defendant’s Opposition did not counter Plaintiffs’ assertion that \$4,440 in sanctions ordered to have been paid by July 31, 2025 have yet to be paid. The sanctions were ordered against both Defendant and her counsel. Defendant has not asserted any reason why those sanctions have not been paid.

The court may impose sanctions even if a party has complied with discovery after the motion was filed. California Rule of Court (CRC) 3.1348(a) provides, “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ... the requested discovery was provided to the moving party after the motion was filed.” (CRC 3.1348(a).)

The court notes that the Defendant’s responses are verified and appear to be code compliant. Substantive answers are given.

The court is at a loss to understand how, given the Defendant’s verified answers in discovery that she has lived at the same address “from March 2025 to the present,” and worked at her two current places of employment from “March 2025 to the present,” could Defense counsel not be able to communicate with his client from July 11, 2025 (the date of the court’s last order on discovery) to December 3, 2025 (the date defense counsel’s firm was able to “successfully track down Defendant.”)? (Defendant’s Responses for Form Interrogatories, Set One, pages 3:20 – 4:19, attached as Ex. C to the Treppa Dec.; Treppa Dec. ¶ 10.) However, the court notes that Defendant was served by publication in this matter—which is some indication that at one point Plaintiff also had difficulty locating her. (Court takes judicial notice, *sua sponte*, of its own orders and files in this matter: Order for Publication filed August 7, 2024 and of Proof of Publication filed September 3, 2024.)

Defendant served verified answers as soon as defense counsel was able to re-establish contact with his client. The almost five month delay does not appear to be unduly prejudicial to Plaintiffs in the context of this case filed December 28, 2023.

Although it appears Plaintiffs themselves had trouble tracking down the Defendant to serve her with the Summons and Complaint, the almost five month delay in complying with the court’s July 11, 2025 order does not appear to be justified. Defendant lived at the same address and worked at the same

places of employment during the entire time that Defense counsel's firm was "seeking to track her down." Defense counsel may have experienced difficulty maintaining contact with his client, but Defendant herself had some obligation to maintain communication with her retained counsel.

In addition, the sanctions order remains outstanding and the court notes that the order was imposed against both Defendant and her counsel. There does not appear to be any justification for defense counsel not to have paid the \$4,440 ordered to be paid by July 31, 2025.

The court recognizes its discretion to issue terminating sanctions in the current case. However, the court also recognizes it must consider whether a sanction short of dismissal or default would be appropriate. The court in *Deyo v. Kilbourne* (1978) 84 Cal. App. 3d 771 described a list of non-exclusive factors a court may consider determining the appropriateness of terminating sanctions, and observed, "[E]ach case must be decided on its own facts and, while lesser sanctions are normally imposed, the ultimate sanction is permissible where the litigant persists in refusing to comply with his discovery obligations." *Deyo, supra*, 84 Cal. App. 3d at 797. The California Supreme Court more recently directed trial courts to consider lesser sanctions before imposing more severe sanctions. In *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal. 5th 46, at 422, the court noted, "[A] more severe sanction is disfavored if a lesser sanction is available."

Here, Defendant provided full verified discovery responses as soon as defense counsel re-established communication with his client, but Defendant has not proffered a good reason for the lack of communication between attorney and client—especially during a period when Defendant lived in the same place and worked at the same two jobs. In addition the sanctions remain unpaid and no justification for the defense attorney's lack of compliance with the court's sanctions order has even been proffered.

Monetary sanctions have already been ordered and ignored. However, the court finds that terminating sanctions would be excessive at this stage. The July 11, 2025 hearing was the first and only hearing on discovery issues in this case and the conduct at issue here – while concerning and not substantially justified -- is not so egregious as to warrant the entry of a default judgment against Defendant.

The court **denies** the motion for terminating sanctions, but **grants** the Plaintiff's motion for an issue sanction against Defendant. The court orders that the following facts are established:

[1] Defendant VIRGINIA GRUVER was negligent at the time of the accident, and [2] Defendant VIRGINIA GRUVER'S negligence was a substantial factor in causing harm to Plaintiffs.

The court also **orders** that Defendant pay the \$4,440 sanction previously ordered by the court to be paid within 20 calendar days of service of notice of entry of this order. Defendant should take notice that a party may be subject to a monetary sanctions of up to \$1500 under CCP § 177.5 for failure to obey a lawful court order.